



Procedure No: EXP202409835 (PS/00413/2024)



RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 05/06/24, the entity CONSERVATORIO ELEMENTAL DE MÚSICA MACARENA (the claimant), submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity AFP GESTION DEL COLOR, S.L. with NIF: B82335290 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The claimant states in their complaint:

"On 25/04/2024, we received unsolicited commercial communication from the email of the respondent. On 26/04/2024, we proceeded to request the cancellation of such communications through the system indicated at the bottom of that commercial communication (link to the email afp@afpcolor.com). On 23/05/2024, we received the same commercial communication again. On 27/05/2024, we reiterated our cancellation request through the same means as before. On 31/05/2024, we received the same commercial communication again, without the sending company heeding our requests."

Along with the complaint, the following documentation is attached:

- Dated 25/04/24, a copy of the email sent from the address "AFP Agendas 24-25" agendas@afpcolor.com to the email address "Conservatorio Elemental de Música.- Macarena" ***email.1 with the Subject: "School Agendas Course 2024/2025", containing the message:

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BILINGUAL SCHOOL AGENDAS. - Early Childhood, Primary and Secondary Education Centers.- Model 1.- 2.5 €.... Inquiries and orders...

- Dated 26/04/24, a copy of the email sent from the address "Conservatorio Elemental de Música.- Macarena" ***email.1 to the email address afp@afpcolor.com with the Subject: (...) Cancellation and the message:

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Dear Sirs. I kindly ask you to remove our email address from your informational communications. The email address to be removed is, ***email.1, Sincerely.

- Dated 23/05/24, a copy of the email sent from the address "AFP Agendas 24-25" agendas@afpcolor.com to the email address "Conservatorio Elemental de Música.- Macarena" ***email.1 with the Subject: "School Agendas Course 2024/2025" and containing the message:

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BILINGUAL SCHOOL AGENDAS.- Early Childhood, Primary and Secondary Education Centers.- Model 1.- 2.5 €.... Inquiries and orders...

- Dated 27/05/24, a copy of the email sent from the address "Conservatorio Elemental de Música.- Macarena" ***email.1 to the email address afp@afpcolor.com with the Subject: (...) Cancellation and the message:

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Dear Sirs. I kindly ask you to remove our email address from your informational communications. The email address to be removed is, ***email.1, Sincerely.

- Dated 31/05/24, a copy of the email sent from the address "AFP Agendas 24-25" agendas@afpcolor.com to the email address "Conservatorio Elemental de Música.- Macarena" ***email.1 with the Subject: "School Agendas Course 2024/2025" and containing the message:

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BILINGUAL SCHOOL AGENDAS.- Early Childhood, Primary and Secondary Education Centers.- Model 1.- 2.5 €.... Inquiries and orders...

At the bottom of the received email, there is the following message:

"T. ***PHONE.1-

***PHONE.2.-

afp@afpcolor.com

www.afpcolor.com www.agendascolaresbilingues.com TO NOT RECEIVE MORE INFORMATION AND TO UNSUBSCRIBE <>.”

SECOND: On 05/07/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), through electronic notification, with the following result: “Forwarding of complaint, sent by the Spanish Agency for Data Protection on 05/07/24 14:45 has expired due to lapse, as the deadline for appearance has been exceeded, as of 16/07/24 00:00,” as stated in the certificate in the file.

Although the notification was attempted to be validly carried out by electronic means, in accordance with the provisions of Article 41.5 of the LPACAP, the complaint was resent to the respondent on 16/07/24, via postal notification, which was returned to sender on 31/07/24 with the result of “Unknown,” as stated in the certificate in the file.

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Likewise, a new transfer was made on 16/07/24 via electronic notification, with the following result:

“Sent by: Spanish Agency for Data Protection; Concept: Reiteration; Date of availability: 16/07/2024 11:43; Date of access to the content of the notification: 16/10/2024 11:07.”

THIRD: On 05/09/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On 15/10/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation. In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 1,000 (one thousand euros). The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP, via electronic notification, with the following result: “Sent by: Spanish Agency for Data Protection; Concept: Opening Agreement; Date of availability: 16/10/2024 09:23; Date of access to the content of the notification: 16/10/2024 11:01,” according to the certificate existing in the file.

SIXTH: Once the aforementioned opening agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the opening agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the opening agreement of the file and in accordance with what is established in Article 64.2.f) of the LPACAP, the aforementioned opening agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First: It is confirmed that the company responsible for the processing of the data and issuer of the commercial electronic communications is AFP GESTION DEL COLOR, S.L. with NIF: B82335290,

whose contact details are: email C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es agendas@afpcolor.com, phone ***TELÉFONO.1 and website www.afpcolor.com.

Second: It is confirmed that on 25/04/24, an email was sent from the address agendas@afpcolor.com, under the name "AFP Agendas 24-25", to the email address ***email.1, whose holder is the Conservatorio Elemental de Música Macarena. The email had the subject: "School Agendas Course 2024/2025" and contained the following message:

"BILINGUAL SCHOOL AGENDAS. - Centers of Early Childhood, Primary and Secondary Education. - Model 1.- 2.5 €.... Inquiries and orders..."

At the bottom of all messages, the following information appeared:

"T. ***TELÉFONO.1 - ***TELÉFONO.2.- afp@afpcolor.com www.afpcolor.com www.agendascolaresbilingues.com TO NOT RECEIVE MORE INFORMATION AND UNSUBSCRIBE <>"

Third: It is confirmed that on 26/04/24, a message was sent from the email address ***email.1 to the address afp@afpcolor.com with the subject "(...) Unsubscribe". In this message, the deletion of the recipient's email address from the informational mailings was requested.

Fourth: It is confirmed that on 23/05/24, a new email was sent from the address agendas@afpcolor.com, under the name "AFP Agendas 24-25", to the address ***email.1, whose subject and content were identical to the message sent on 25/04/24.

Fifth: It is confirmed that on 27/05/24, a new message was sent from the email address ***email.1 to the address afp@afpcolor.com with the subject "(...) Unsubscribe". In this message, the request for deletion of the recipient's email address from the informational mailings was reiterated.

Sixth: It is confirmed that on 31/05/24, a new email was sent from the address agendas@afpcolor.com, under the name "AFP Agendas 24-25", to the address ***email.1, whose subject and content were identical to the messages sent on 25/04/24 and 23/05/24.

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions..."

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Summary of the events that occurred and preliminary issues:

In the complaint document, it is indicated that, on 25/4/24, the complainant received an unsolicited commercial communication from the email address of the respondent. One day later, on 26/04/24, he requested to unsubscribe from such commercial communications through the unsubscription system indicated in the footer of the received commercial communication, that is, by sending an email to afp@afpcolor.com. However, despite this request, the complainant received the same commercial communication again on 23/05/24. In light of this new receipt, he reiterated the unsubscription request on 27/05/24 by sending a new email with the same content to the same address, but despite all this,

on 31/05/24, he again received a similar commercial communication, without compliance with the unsubscription requests made.

Along with the complaint document, the complainant has provided documentation that substantiates his complaint and evidences the persistence in sending unsolicited commercial communications and the omission of the unsubscription requests by the respondent.

A sanctioning file was initiated against the respondent for sending commercial communications without having been requested or expressly authorized, and after the period granted for making allegations, no allegations have been received regarding the initiation of the file in this Agency.

III

Classification of the infringement committed by sending commercial communications without prior request or express authorization.

Based on the above, the act of sending commercial communications without prior request or express authorization constitutes a violation of the provisions established in Article 21 of the LSSI, as it states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them for sending..."

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commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.

IV

Sanction

The aforementioned infringement is classified as "minor" in article 38.4.d) of said regulation, which qualifies as such: "The sending of commercial communications by email or other equivalent electronic means when the requirements established in article 21 are not met and does not constitute a serious infringement."

According to the provisions of article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

On the other hand, article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions: "The amount of the fines imposed will be graduated according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when declared as such by a final resolution. d) The nature and extent of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is deemed appropriate to impose a sanction of €1,000 (one thousand euros) for the infringement of article 21.1 of the LSSI.

In accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity AFP GESTION DEL COLOR, S.L. with NIF: B82335290, for the infringement of article 21.1 of the LSSI, classified as minor in article 38.4.d) of the aforementioned regulation, a sanction of €1,000 (one thousand euros).

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SECOND: NOTIFY this resolution to AFP GESTION DEL COLOR, S.L.

THIRD: Warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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